

UNITED STATES BANKRUPTCY COURT
SOUTHERN DISTRICT OF FLORIDA
_____ DIVISION

In re:

DEBTOR'S NAME,

Case No. xx-xxxxx-xxx

Debtor.

Chapter 11

_____/

**ORDER (I) CONDITIONALLY APPROVING DISCLOSURE STATEMENT;
(II) SETTING HEARING ON FINAL APPROVAL OF DISCLOSURE
STATEMENT AND CONFIRMATION OF PLAN; (III) SETTING
HEARING ON FEE APPLICATIONS; (IV) SETTING VARIOUS
DEADLINES; AND (V) DESCRIBING PLAN PROPONENT'S OBLIGATIONS**

On [date], [plan proponent] (the “plan proponent”) filed a [disclosure statement¹ in connection with its chapter 11 plan²] [a combined plan and disclosure statement³]. The plan proponent seeks conditional approval of the disclosure statement in this small business case under Fed. R. Bankr. P. 3017.1. The plan proponent also requests that the Court set a hearing to consider final approval of the disclosure statement, confirmation of the plan (the “confirmation hearing”), and any timely filed fee applications, and to establish deadlines and requirements relating to

¹ Dkt. No. ____.

² Dkt. No. ____.

³ Dkt. No. ____.

confirmation consistent with the Bankruptcy Code, Federal Rules of Bankruptcy Procedure, and Local Rules of this Court. Therefore, it is

ORDERED, and NOTICE IS GIVEN, that:

1. **Conditional Approval of Disclosure Statement.** The disclosure statement is conditionally approved.
2. **Confirmation Hearing.** The Court will conduct the confirmation hearing and consider final approval of the disclosure statement and approval of timely-filed fee applications, subject to the following deadlines and requirements, as follows:

Date: [DATE]

Time: [TIME]

Location: [LOCATION]

The confirmation hearing may be continued to a future date by notice given in open court at the confirmation hearing.

3. **Deadlines.** The following deadlines apply with respect to the confirmation hearing and hearing on fee applications:

<u>Deadline for:</u>	<u>Date:</u>
Serving This Order, Disclosure Statement, Plan, and Ballots	[35 days ⁴ before confirmation hearing]
Filing and Serving Fee Applications	[24 days before confirmation hearing]
Filing and Serving Notice Summarizing All Fee Applications	[21 days before confirmation hearing]
Filing Ballots Accepting or Rejecting Plan	[7 days before confirmation hearing]
Filing Objections to Final Approval of Disclosure Statement	[7 days before confirmation hearing]
Filing Objections to Confirmation	[7 days before confirmation hearing]
Filing Motions Under Fed. R. Civ. P. 43(a)	[7 days before confirmation hearing]
Filing Local Form <i>Chapter 11 Ballot Tabulation and Confirmation Certificate</i>	[3 business days before confirmation hearing]

⁴ [Submitting attorney must populate this table with the actual date for each deadline. If any date falls on a Saturday, Sunday, or legal holiday, the deadline should be the last business day before the Saturday, Sunday, or legal holiday.]

Filing Confirmation Affidavit or Declaration	[3 business days before confirmation hearing]
Filing Exhibit Register and Uploading Exhibits	[3 business days before confirmation hearing]
Filing Local Form <i>Individual Chapter 11 Debtor's Confirmation Certificate Regarding Payment of Domestic Support Obligations and Filing of Requested Tax Documents</i> (individual cases only)	[3 business days before confirmation hearing]

4. Plan Proponent's Obligations.

A. Sending the Plan and Related Documents. By the deadline listed above for *Serving This Order, Disclosure Statement, Plan, and Ballots*, the plan proponent must:

- (1) serve on the debtor, the trustee, the United States trustee, all creditors, all indenture trustees, and all equity security holders, as required by Fed. R. Bankr. P. 2002 and 3017:
 - (a) a copy of this order;
 - (b) the conditionally approved disclosure statement; and
 - (c) the plan; and
- (2) serve on all creditors and equity security holders entitled to vote on the plan a ballot for accepting or rejecting the plan (Official Form 314).

B. Plan Injunction. If, under the plan, an entity that is not a creditor or equity security holder is subject to an injunction against conduct not otherwise enjoined by the Bankruptcy Code, the plan proponent must also, by the deadline listed above for *Serving This Order, Disclosure Statement, Plan, and Ballots*, serve on those entities against whom the plan proponent seeks an injunction, as required by Fed. R. Bankr. P. 3017(f):

- (1) a copy of this order;
- (2) the conditionally approved disclosure statement; and
- (3) the plan.

- C. **Notice of Fee Applications.** By the deadline listed above for *Filing and Serving Notice Summarizing All Fee Applications*, the plan proponent must prepare, file, and serve on the debtor, the trustee, the United States trustee, all creditors, and all indenture trustees, a notice summarizing all timely filed fee applications, as required by Fed. R. Bankr. P. 2002(a)(6). As required by Fed. R. Bankr. P. 2002(c)(2), the notice must identify the name of and the amount sought by each applicant.
 - D. **Ballot Tabulation and Confirmation Certificate.** By the deadline listed above for *Filing Local Form Chapter 11 Ballot Tabulation and Confirmation Certificate*, the plan proponent must file local form *Chapter 11 Ballot Tabulation and Confirmation Certificate*.
 - E. **Confirmation Affidavit or Declaration.** By the deadline listed above for *Filing Confirmation Affidavit or Declaration*, the plan proponent must file an affidavit or declaration setting forth the facts on which the plan proponent relies to establish each applicable requirement of 11 U.S.C. § 1129. The affidavit or declaration should be prepared so that by reading it, the Court can easily understand the significant terms of the plan and other material facts relating to confirmation. The individual executing the affidavit or declaration must be present in person at the confirmation hearing.
 - F. **Individual Cases.** In individual cases the plan proponent must file local form *Individual Chapter 11 Debtor's Confirmation Certificate Regarding Payment of Domestic Support Obligations and Filing of Requested Tax Documents* by the deadline listed above for *Filing Local Form Individual Chapter 11 Debtor's Confirmation Certificate Regarding Payment of Domestic Support Obligations and Filing of Requested Tax Documents*.
 - G. **Certificate of Service.** The plan proponent must file a certificate of service, as required by Local Rule 9036-2, of this order and any other document required to be served by this order.
5. **Notice to Creditors Whose Claim Has Been Objected To.** If you receive a ballot but your entire claim has been objected to, you will not have the right to vote until the objection is resolved, unless you request an order under Fed. R. Bankr. P. 3018(a)(4) temporarily allowing your claim for voting purposes.

6. Fee Applications.

- A. Filing and Service.** To be considered at the confirmation hearing, an application for compensation under Fed. R. Bankr. P. 2016 must, by the deadline listed above for *Filing and Serving Fee Applications*, be filed and served on:
- (1) the debtor;
 - (2) the plan proponent (if other than the debtor);
 - (3) all committees that have been appointed;
 - (4) any chapter 11 trustee or examiner that has been appointed; and
 - (5) the United States trustee.
- B. Estimated Time and Supplements.** If an applicant for final compensation seeks compensation for additional time and expenses to be incurred from the end of the application period through confirmation, the application must include a good faith estimate of additional time and expenses expected to be incurred. An application that includes an estimate of additional time and expenses must file a supplement before the confirmation hearing with documentation supporting the estimated time and expenses.

7. Evidence.

- A. Exhibits and Exhibit Registers.** The confirmation hearing is an evidentiary hearing even when confirmation is uncontested.⁵ Therefore, the plan proponent and any objecting party, if applicable, must file with the Court an *Exhibit Register* and upload any exhibits the plan proponent or objecting party intends to introduce into evidence at the confirmation hearing pursuant to Local Rule 9017-1, by the deadline listed above for *Filing Exhibit Register and Uploading Exhibits*. Notwithstanding Local Rule 9017-1(a)(3), however, any objection to the admissibility of any exhibit for the confirmation hearing need not be filed in advance and instead may be raised for the first time at the confirmation hearing.

⁵ Under Fed. R. Bankr. P. 3020(b)(3), if no objection is timely filed, the court may, without receiving evidence, determine that the plan was proposed in good faith and not by any means forbidden by law.

B. Remote Witness Testimony. Any party wishing to present remote witness testimony must file by the deadline listed above for *Filing Motions Under Fed. R. Civ. P. 43(a)*, a motion under Federal Rule of Civil Procedure 43(a), made applicable here by Fed. R. Bankr. P. 9017, setting forth the good cause, compelling circumstances, and appropriate safeguards in place for the Court to permit remote witness testimony.

8. Sanctions, Dismissal, or Conversion. If the plan proponent does not timely comply with any of the requirements of this order, the Court may impose sanctions at the confirmation hearing without further notice, including dismissal, conversion of the case to chapter 7, or the striking of the plan. The Court will also consider dismissal or conversion at the confirmation hearing at the request of any party in interest or on the Court's own motion.

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Submitted by:

[Submitting attorney name]

[Law firm name]

[Mailing address]

[Phone number]

[Email address]